

6. The Board may make regulations—

- (a) for issuing notices relating to the appointment (other than the first appointments) of members of the Board, and for convening meetings (other than the first meeting) of the Board; and
- (b) for regulating the proceedings (including the quorum) of the Board; and
- (c) for enabling the Board to constitute committees, and to include as members of committees persons who are not members of the Board; and
- (d) for authorising the delegation to committees of all or any of the powers of the Board (other than the power to acquire or dispose of land), and for regulating the proceedings (including the quorum) of committees.

7. The powers of the Board may be exercised notwithstanding any vacancy in their number.

CHAPTER 74.

An Act to amend the Dangerous Drugs Acts, 1920 and 1923, so far as is necessary to enable effect to be given to a Convention signed at Geneva on behalf of His Majesty on the nineteenth day of February, nineteen hundred and twenty-five.

[7th August 1925.]

WHEREAS at a conference held at Geneva for the purpose of completing and strengthening the provisions of the International Opium Convention signed at the Hague on the twenty-third day of January, nineteen hundred and twelve (hereinafter referred to as “the Hague Convention”), a convention for the purpose aforesaid (hereinafter referred to as “the Geneva Convention”) was signed on behalf of His Majesty on the nineteenth day of February, nineteen hundred and twenty-five:

And whereas by Article 8 of the Geneva Convention it is provided that, in the event of the Health Committee of the League of Nations, after having submitted the question for advice and report to the Permanent Committee of the Office International d'Hygiene Publique in Paris, finding that any preparation containing any of the narcotic drugs referred to in Chapter III. of the Convention (being the drugs to which Part III. of the Dangerous Drugs Act, 1920, as amended by this Act, applies) cannot give rise to the drug habit on account of the medicaments with which the said drugs are compounded, and which in practice preclude the recovery of the said drugs, the Health Committee shall communicate this finding to the Council of the League of Nations, and that the Council shall communicate the finding to the parties to the Convention, and thereupon the provisions of the Convention will not be applicable to the preparation concerned :

And whereas it is provided by Article 31 of the Geneva Convention that that Convention shall as between the parties thereto replace the provisions of Chapters I., III. and V. of the Hague Convention, which provisions are to remain in force as between the parties to the Geneva Convention and any parties to the Hague Convention which are not parties to the Geneva Convention :

And whereas by Article 36 of the Geneva Convention it is provided that that Convention shall not come into force until it has been ratified as therein mentioned :

And whereas it is expedient to amend the Dangerous Drugs Acts, 1920 and 1923, so far as is necessary to enable effect to be given to the Geneva Convention :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Part I. of the Dangerous Drugs Act, 1920, (which restricts the importation and exportation of, and gives power to regulate dealings in, raw opium), shall, as amended by this Act, apply to coca leaves, Indian hemp, Extension
of Part I. of
Dangerous
Drugs Act,
1920, to

coca leaves
and Indian
hemp.
10 & 11
Geo. 5. c. 46.

and resins obtained from Indian hemp and all preparations of which such resins form the base, as it applies to raw opium.

(2) In this Act—

The expression “coca leaves” means the leaves of any plant of the genus of the erythroxylaceæ from which cocaine can be extracted either directly or by chemical transformation:

The expression “Indian hemp” means the dried flowering or fruiting tops of the pistillate plant known as *cannabis sativa* from which the resin has not been extracted, by whatever name such tops are called.

Amendment
of s. 2 (1) of
Dangerous
Drugs Act,
1920.

2. The words “and except in packages marked in the prescribed manner with an indication of the contents thereof” in subsection (1) of section two of the Dangerous Drugs Act, 1920 (which restricts the exportation of raw opium), are hereby repealed.

Amendment
as to drugs
to which
Part III. of
Dangerous
Drugs Act,
1920,
applies.

3. The following shall be substituted for subsection (1) of section eight of the Dangerous Drugs Act, 1920 (which defines the drugs to which Part III. of that Act applies):—

“(1) The drugs to which this Part of this Act applies are morphine, cocaine (including synthetic cocaine), ecgonine, diacetylmorphine (commonly known as diamorphine or heroin), and their respective salts, medicinal opium, and any extract or tincture of Indian hemp, and any preparation, admixture, extract or other substance containing any proportion of diacetylmorphine or containing not less than one-fifth per cent. of morphine or one-tenth per cent. of cocaine or ecgonine.

“For the purpose of the foregoing provision the expression “ecgonine” means laevo-ecgonine and includes any derivatives of ecgonine from which it may be recovered industrially, and the percentage in the case of morphine shall be calculated as in respect of anhydrous morphine.”

Meaning of
“medicinal
opium.”

4.—(1) For the purposes of the Dangerous Drugs Acts, 1920 and 1923, and this Act, the expression “medicinal opium” means raw opium which has under-

gone the processes necessary to adapt it for medicinal use in accordance with the requirements of the British Pharmacopœia, whether it is in the form of powder or is granulated or is in any other form, and whether it is or is not mixed with neutral substances.

(2) The definition of medicinal opium in subsection (1) of section fifteen of the Dangerous Drugs Act, 1920, is hereby repealed.

5. If His Majesty in Council thinks fit to declare that a finding with respect to any preparation containing any of the drugs to which Part III. of the Dangerous Drugs Act, 1920, as amended by this Act, applies has in pursuance of Article 8 of the Geneva Convention been communicated by the Council of the League of Nations to the parties to the said Convention, the provisions of the said Part III. shall as from such date as may be specified in the Declaration cease to apply to the preparation specified therein.

Power to
exclude
certain
preparations
from Part
III. of
Dangerous
Drugs Act,
1920.

6. Subsection (2) of section six of the Dangerous Drugs and Poisons (Amendment) Act, 1923 (which defines the expression "corresponding law") shall have effect as though the reference therein to the provisions of the Hague Convention, included a reference to the provisions of the Geneva Convention.

Amendment of
s. 6 (2) of
Dangerous Drugs
and Poisons
(Amendment)
Act, 1923.
13 & 14 Geo. 5.
c. 5.

7.—(1) This Act may be cited as the Dangerous Drugs Act, 1925, and the Dangerous Drugs Acts, 1920 and 1923, and this Act may be cited together as the Dangerous Drugs Acts, 1920 to 1925.

Short title,
extent and
commence-
ment.

(2) This Act shall not extend to Northern Ireland, except in so far as it amends the Dangerous Drugs Acts, 1920 and 1923, in relation to matters with respect to which the Parliament of Northern Ireland have not power to make laws.

(3) This Act shall come into operation on such date as His Majesty may by Order in Council appoint, and different dates may be appointed for different provisions of this Act and in relation to different countries.

